

Education savings plan Mutual fund application form



SLGI Asset Management Inc., 30 Adelaide St. E., Suite 1, Toronto, ON M5C 3G9
Telephone: 1-877-344-1434 Fax: 1-877-805-9310

Sun Life Global Investments
account number

Sun Life Global Investments
Dealer account number

Plan information

- ☐ Individual plan (for individual beneficiary)
☐ Family plan (for multiple beneficiaries)

Is this a change to an existing plan? ☐ No ☐ Yes If Yes, please provide the account number

Subscriber information

Language preference (If no language preference is indicated, English will be selected.)

- ☐ English (For Quebec residents, you will receive a French and an English copy of your account)
☐ French

First name	Middle name	Last name	Birth date (dd-mm-yyyy)	Social Insurance Number
Residential address (street number and name) PO Box and general delivery is not acceptable				Apartment or suite
City			Province	Postal code
Email address		Telephone (home)		Telephone (business)

I (We) request electronic delivery of: ☐ Statements ☐ Transaction confirmations

Is the mailing address the same as the residential address ☐ Yes ☐ No If no, please complete the mailing address

Mailing address (PO Box and general delivery is acceptable)		
City	Province	Postal code

Joint Subscriber information (A joint subscriber can only be a spouse, common-law partner ("Spouse") of the subscriber, or if the subscriber is a legal parent of a beneficiary, their former spouse or former common-law partner ("Spouse") who is also the legal parent of a beneficiary.)

☐ and / or (Either subscriber can sign once account has been opened). OR ☐ and (Both subscribers must sign).				
First name	Middle name	Last name	Birth date (dd-mm-yyyy)	Social Insurance Number
Address (if different from primary subscriber)				Apartment or suite
City			Province	Postal code
Email address		Telephone (home)		Telephone (business)

Beneficiary information - Individual Beneficiary Plan

The beneficiary can be anyone and doesn't have to be related to the subscriber. The beneficiary must be a Canadian resident and have a valid social insurance number. To avoid delays in registration or applicable grant/bond payments, the beneficiary's name must match exactly what appears on the Social Insurance Number (SIN) card. There is no age limitation and only one beneficiary is permitted.

First name		Middle name	Last name	
Birth date (dd-mm-yyyy)	Social Insurance Number	Gender at birth ☐ Male ☐ Female ☐ Other Gender	Relationship to Subscriber	
Street address (street number and name) (if different from primary subscriber)			Apartment or suite	
City		Province	Postal code	

If Beneficiary is under age 19, provide name and address of parent / guardian / public primary caregiver, if different from primary Subscriber.

First name		Middle name	Last name	
Street address (street number and name) (if different from primary subscriber)			Apartment or suite	
City		Province	Postal code	

Would you like us to apply for Grants and / or Incentives and / or CLB on your behalf? ☐ No ☐ Yes (If Yes, complete applicable grant form(s))*.

Beneficiary information - Family Plan

The beneficiaries must be under the age of 21. The following persons are designated as beneficiaries entitled to received educational assistance payments under this family plan. All beneficiaries designated must be related to the Subscriber(s) by blood relationship, legal guardianship, public primary caregiver, or adoption, and reside in Canada. In order to qualify for the Additional Canada Education Savings Grant (ACESG), the Canada Learning Bond (CLB) and provincial grants/incentives, all beneficiaries must be siblings who are connected by blood or adoption.

To avoid delays in registration or applicable grant/bond payments, the beneficiary's name must match exactly what appears on the Social Insurance Number (SIN) card.

Would you like us to apply for Grants and / or Incentives and / or CLB on your behalf? ☐ No ☐ Yes

(If Yes, complete applicable grant form(s) for all beneficiaries) * If No, and Grants are to be applied for some beneficiaries please complete the special instructions below with the specific beneficiary name(s).

*Attach copy of applicable grant forms.

Beneficiary # 1

First name		Middle name	Last name	
Birth date (dd-mm-yyyy)	Social Insurance Number	Gender at birth ☐ Male ☐ Female ☐ Other Gender	Relationship to Subscriber	
Street address (street number and name) (if different from primary subscriber)			Apartment or suite	
City		Province	Postal code	

If Beneficiary is under age 19, provide name and address of parent / guardian / public primary caregiver, if different from primary Subscriber.

First name		Middle name	Last name	
Street address (street number and name) (if different from primary subscriber)			Apartment or suite	
City		Province	Postal code	

Beneficiary information – Family Plan (continued)

Beneficiary # 2

First name		Middle name	Last name	
Birth date (dd-mm-yyyy)	Social Insurance Number	Gender at birth ☐ Male ☐ Female ☐ Other Gender	Relationship to Subscriber	
Street address (street number and name) (if different from primary subscriber)			Apartment or suite	
City		Province	Postal code	

If Beneficiary is under age 19, provide name and address of parent / guardian / public primary caregiver, if different from primary Subscriber.

First name		Middle name	Last name	
Street address (street number and name) (if different from primary subscriber)			Apartment or suite	
City		Province	Postal code	

Beneficiary # 3

First name		Middle name	Last name	
Birth date (dd-mm-yyyy)	Social Insurance Number	Gender at birth ☐ Male ☐ Female ☐ Other Gender	Relationship to Subscriber	
Street address (street number and name) (if different from primary subscriber)			Apartment or suite	
City		Province	Postal code	

If Beneficiary is under age 19, provide name and address of parent / guardian / public primary caregiver, if different from primary Subscriber.

First name		Middle name	Last name	
Street address (street number and name) (if different from primary subscriber)			Apartment or suite	
City		Province	Postal code	

Beneficiary Contribution allocation

This section only applies to family plans.

By default, the initial contributions will be allocated equally among all beneficiaries within the plan. If you would like a different allocation, complete the below:

Beneficiary first name	Middle name	Last name	Allocation
			%
			%
			%
IMPORTANT: If no allocation is provided, the contribution will be allocated equally between the beneficiaries within the plan.			Total (100%) %

Investment instructions

For initial purchases by PAC, complete the **Pre-authorized chequing plan (PAC)** section below.

For A\$M Fundserv payment remit to **SUN**.

Initial contribution funded by:

☐ Wire order (W/O)

☐ Transfer from another RESP account # (Attach copy of transfer form and to initiate transfer send original to relinquishing institution.)

☐ Cheque

For a full listing of fund numbers, visit www.sunlifeglobalinvestments.com/FundCodes.

If no investment instructions are provided for initial or subsequent purchases, funds will be invested in Sun Life Money Market Fund FEL Series A (SUN107).

Note: U.S. Dollar Purchase Option Funds are not available for Registered plans.

Fund number	Purchase amount ☐ \$ ☐ %	Sales charge % increments of 0.5% (0 to 5)	W/O number (if applicable)
SUN			
SUN			
SUN			
SUN			
SUN			
Total			

The Canada Education Savings Grant (CESG) and Additional Education Savings Grant (ACESG) will be allocated based in the original contribution transaction.

If you have added Purchase amounts, complete the **Beneficiary Contribution Allocation, Canada Learning Bond (CLB) and Provincial incentives allocation** and **Banking information** sections below, if applicable.

Note: All dividends/distributions in RESP plans are automatically reinvested in additional units/shares of the fund. Distributions/dividends cannot be paid in cash on RESP plans (family and individual).

Pre-authorized chequing plan (PAC)

One-time PAC date (dd-mm-yyyy)	One-time PAC amount Amount \$	If the account is created after the date indicated, the PAC will be processed on the next available business day once received.
Fund code (Include entire fund code e.g. : SUN100)	Initial sales charge % increments of 0.5% (0 to 5).	Amount ☐ \$ ☐ %
SUN		
SUN		
SUN		
SUN		
SUN		
		Total

If the account is created after the start date indicated, the PAC will begin on the next scheduled payment date.

PAC start date (dd-mm-yyyy)	PAC amount Amount \$
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Pre-authorized chequing plan (PAC) (continued)**PAC frequency** (select one)

- ☐ Weekly
 ☐ Bi-weekly (every other week)
 ☐ Semi-monthly (twice a month)*
 ☐ Monthly
☐ Bi-monthly (every other month)
 ☐ Quarterly
 ☐ Semi-annually
 ☐ Annually

*Specify day of the month for semi monthly:

and

If no selection is made, default will be the 1st and 15th of each month.

Fund number	Sales charge % increments of 0.5% (0 to 5)	Amount ☐ \$ ☐ %
SUN		
SUN		
SUN		
SUN		
SUN		
		Total

Canada Learning Bond (CLB) and Provincial incentives allocation

Only one fund can be selected. By default, Canada Learning Bond (CLB) and provincial grants/incentives will be deposited to SUN 107, the Sun Life Money Market Fund (Front End Sales Charge Option). If you would like the CLB and/or provincial grants/incentives deposited into a different fund, complete the below:

	Fund number
*Canada Learning Bond (CLB)	SUN
*Provincial grants/incentives	SUN

IMPORTANT: Complete the appropriate grant and / or bond application form for the beneficiary. Attach copies of form(s).

Banking information**This is mandatory if:**

- Initial purchase/contribution is funded by a bank account (**EFT**)
- PAC** set up

Attach a void cheque or pre-authorized deposit form from the bank

Note: Ensure that the void cheque or bank form is printed with the Client's name on it.**Signature(s) required below if:**

- Joint bank account, where all bank account holder must sign if more than one signature is required on cheques

Bank account holder's signature X	Date (dd-mm-yyyy)
Joint bank account holder's signature (if applicable) X	Date (dd-mm-yyyy)

Systematic transfer plan (STP) and/or dollar cost average (DCA)

If the account is created after the start date indicated, the STP or DCA will begin on the next scheduled run date.

Do you wish to transfer securities from one fund to another? ☐ Yes ☐ No

Payment start date

(dd-mm-yyyy)

If the account is created after the start date indicated, the start date will begin on the next scheduled payment date.

The frequency selected (excluding twice per month) will begin as of the start date indicated

Frequency:

- ☐ Weekly ☐ Bi-weekly (every other week) ☐ Semi-monthly (twice a month)* ☐ Monthly
☐ Bi-monthly (every other month) ☐ Quarterly ☐ Semi-annually ☐ Annually

*Specify day of the month for semi monthly: and If no selection is made, default will be the 1st and 15th of each month.

For a full listing of fund numbers, visit www.sunlifeglobalinvestments.com/FundCodes.

From	To	Amount
Fund number	Fund number	
SUN	SUN	\$
SUN	SUN	\$
SUN	SUN	\$
SUN	SUN	\$
SUN	SUN	\$

Special instructions

Authorization

To: SLGI Asset Management Inc. (The "Promoter"): I (We) hereby apply for an Education Savings Plan (the "Plan") and hereby request the Promoter to apply for registration of the Plan under the Applicable Tax Legislation. I (We) acknowledge and agree to the Education Savings Plan Text and I (we) agree that the Plan (should this Application be accepted) shall be subject to the provisions thereof. I (We) understand that all payments made from the Plan, other than by way of a refund of contributions paid into the Plan, may be subject to taxation as income in accordance with the provisions of Applicable Tax Legislation. I (We) agree to inform the Promoter of any change in circumstances of the beneficiary(ies) when making contributions to the Plan.

I (We) hereby declare that the information given in this document is true, correct and complete in every respect.

I (We) understand that the Plan provides that no contributions may be made into the Plan by or on behalf of a Subscriber after the 31st year following the year in which the Plan is established (year Plan was opened plus 31 years). For a Specified Plan, no contributions may be made into the Plan by or on behalf of the Subscriber after the 35th year following the year in which the Plan is established (year Plan was opened plus 35 years).

I (We) understand that the Plan provides that it must be terminated on or before the last day of the 35th year following the year in which the Plan was established (year Plan was opened plus 35 years). For a Specified Plan it must be terminated on or before the last day of the 40th year following the year in which the Plan was established (year plan opened plus 40 years).

I (We) acknowledge that in order to be eligible to receive a Canada Education Savings Grant, a Social Insurance Number is required for the Beneficiary, and the Beneficiary must be a Canadian resident. I (We) undertake to advise the Promoter if the Beneficiary is no longer resident in Canada at the time of any subsequent contribution in relation to that Beneficiary. I (We) further undertake to advise the Promoter if the Beneficiary is a non-resident at the time an educational assistance payment is requested, as qualification for the educational assistance payment may be impacted.

I (We) acknowledge where the Beneficiary was 16 or 17 years of age this year, at least one of the following conditions must have been met to be eligible for the Canada Education Savings Grant:

- A minimum of \$2,000 of contributions has been made to, and not withdrawn from, an RESP in respect of the Beneficiary before the year in which the Beneficiary was 16 years of age;
- A minimum of \$100 of annual contributions has been made to, and not withdrawn from, an RESP in respect of the Beneficiary in any four years before the year in which the Beneficiary turned 16 years of age.

I (We) understand that overcontributions for a beneficiary under this Plan or any other education savings plan may result in a penalty tax being levied on all the Subscribers. I (We) authorize that any required repayments (including any interest, fees, penalties or charges on such repayments) of Government Grants will be redeemed from one or more of the Funds of this Plan, as determined by the Promoter in its sole discretion.

I (We) authorize that any required repayment of Quebec Education Savings Incentive ("QESI") that subsequently is deemed by the Promoter to be a tax credit and not a special tax, will be invested in the default fund as specified in the Promoter's Simplified Prospectus

I (We) authorize the Promoter to apply for QESI on behalf of any eligible designated beneficiaries, based on the information provided to the Promoter by this Application or otherwise, unless the Promoter receives specific written instructions from me (us) to do otherwise.

I (We) hereby apply to the Promoter to purchase units/shares of the investment(s) as indicated. I (We) acknowledge receipt of the current Promoter's Simplified Prospectus of the investment(s) purchased and understand that these transactions are made under the terms and conditions found in the Promoter's Simplified Prospectus and the Pre-Authorized Debit Terms and Conditions (where applicable).

For Quebec residents: You acknowledge having received a French version of this application and the document **Sun Life Global Investments Education Savings Plan Text** (Individual Plan)/(Family Plan) and having expressly chosen to complete the English version of the application. You have also expressly chosen to receive all documents related to this account in English, as indicated in the **Subscriber information** section.

Electronic delivery of statements and/or Confirmations:

By making this request:

- You understand these documents will be delivered to your SLGI Connect account. You will be notified via email when they are ready for viewing. If this is for a joint contract, you acknowledge that delivery to the email address provided is delivery to each contract owner.
- You have the necessary technical ability and electronic resources to access and view these documents and notices, this includes Internet access and document viewing software. It is your responsibility to view all documents sent to your SLGI Connect account.
- You will advise Sun Life immediately if the email address changes. Sun Life will send paper copies of these documents if it receives notice of a failed email delivery.
- If you are unable to successfully download these documents, you can request a printed copy to be mailed to you.
- You are not required to choose electronic delivery of documents and you can change your mind about electronic delivery at any time by calling Sun Life Global Investments.

Sun Life reserves the right to send you paper copies of documents at any time.

Pre-Authorized Debit Terms and Conditions

- **By signing this form, you hereby waive any pre-notification requirements as specified by sections 15(a) and (b) of the Payments Canada Rule H1 with respect to preauthorized debits.**
- You authorize the Fund Company indicated in this agreement to debit the bank account provided for the amount(s) and in the frequencies instructed. If additional space is required a separate sheet may be attached.
- If this is for your own personal investment, your debit will be considered a Personal Pre-authorized Debit (PAD) by Payments Canada definition. If this is for business purposes, it will be considered a Business PAD. Monies transferred between Payments Canada members will be considered a Funds Transfer PAD where the payor and the payee are the same.
- You have certain recourse rights if a debit does not comply with this agreement. For example, you have the right to receive reimbursement for any debit that is not authorized or is not consistent with this preauthorized debit agreement. To obtain more information on your recourse rights, you may contact your financial institution or visit www.payments.ca.
- You confirm that all persons whose signatures are required to authorize transactions in the bank account provided have signed this agreement.
- You may change these instructions or cancel this plan at any time, provided that the relevant Fund Company receives at least 3 business days notice by phone or by mail. Contact information for the Fund Company may be found at www.sunlifeglobalinvestments.com. To obtain a copy of a cancellation form or for more information regarding your right to cancel a pre-authorized debit agreement, please consult with your financial institution or visit the Payments Canada website at www.payments.ca. You agree to release the financial institution of all liability if the revocation is not respected, except in the case of gross negligence by the financial institution.
- The specified Fund Company is authorized to accept changes to this agreement from my registered dealer or my financial advisor in accordance with the policies of that company, in accordance with the disclosure and authorization requirements of Payments Canada.
- You agree that the information in this form will be shared with the financial institution, insofar as the disclosure of this information is directly related to and necessary for the proper application of the rules applicable for pre-authorized debits.
- You acknowledge and agree that you are fully liable for any charges incurred if the debits cannot be made due to insufficient funds or any other reason for which you may be held accountable.
- **For Quebec residents:** You acknowledge having received a French version of this application and the document **Sun Life Global Investments Education Savings Plan Text** (Individual Plan)/(Family Plan) and having expressly chosen to complete the English version of the application. You have also expressly chosen to receive all documents related to this account in English, as indicated in the **Subscriber information** section.

Authorization (continued)

Respecting your privacy

Our Purpose is to help our Clients achieve lifetime financial security and live healthier lives. We collect, use and disclose your personal information to: develop and deliver the right products and services; enhance your experience and manage our business operations; perform underwriting, administration and claims adjudication; protect against fraud, errors or misrepresentations; tell you about other products and services; and meet legal and security obligations. We collect it directly from you, when you use our products and services, and from other sources. We keep your information confidential and only as long as needed. People who may access it include our employees, distribution partners such as advisors, service providers, reinsurers, or anyone else you authorize. At times, unless we're prohibited, they may be outside your jurisdiction and your information may be subject to local laws. You can always ask for your information and to correct it if needed. In most cases, you have a right to withdraw your consent, but we may not be able to provide the requested product or service. Read our Global Privacy Statement and local policy at www.sunlife.ca/privacy or call us for a copy.

By signing below, you:

acknowledge that you have read, understand and agree to the **Respecting your privacy** provisions in this application.

Leverage: Not available for Registered Plans/Funds. Using borrowed money to finance the purchase of securities involves greater risk than using cash resources only. If you borrow money to purchase securities, your responsibility to repay the loan and pay interest as required by its terms remains the same even if the value of the securities purchased declines. If you decide to borrow money or use credit to make an investment, always consider the cost of borrowing. Using borrowed money for investments involves more risk than making an investment with cash resources.

This Application is accepted by the undersigned in accordance with the terms of the Education Savings Plan text printed on the reverse side of this Application. SLGI Asset Management Inc. as Promoter and on behalf of the trustee, The Royal Trust Company.

Subscriber's signature X	Date (dd-mm-yyyy)
Joint Subscriber's signature (if applicable) X	Date (dd-mm-yyyy) Authorized signature X 

PAC authorization

By signing, you authorize the use of the banking information provided on the void cheque or pre-authorized deposit form and that you have read and agree to the PAC terms and conditions set out in this application.

For a joint bank account, all account holders must sign if more than one signature is required.

PAC payor's signature X	Date (dd-mm-yyyy)
Joint PAC payor's signature (if applicable) X	Date (dd-mm-yyyy)

Dealer and representative information

Dealer name	Dealer number	Rep. number (Not your Sun Code)
Representative's first name	Middle name	Last name
Email address	Telephone	

I confirm that all the identification details provided in this form match the original identification documents shown to me. I also confirm I have reviewed the details provided in this form with the Subscriber(s) and to the best of my knowledge, these details are full, complete and true. I have made reasonable efforts to determine if the Subscriber(s) is (are) acting on behalf of a third party.

Representative's signature X	Date (dd-mm-yyyy)
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Sun Life Global Investments Education Savings Plan

Plan Text (Family Plan)

1. DEFINED TERMS:

- (a) **Accumulated Income Payment** means any amount paid out of the Plan, other than a payment described in any of sections 14(a) and 14(c) to 14(f), to the extent that the amount so paid exceeds the fair market value of any consideration given to the Plan for the payment of the amount.
- (b) **Applicable Grant Legislation** means the *Canada Education Savings Act* (Canada), the *Taxation Act* (Quebec) with respect to the Quebec Education Savings Incentive, and any other provincial education savings plan legislation that may be enacted and come into force from time to time, as the case may be, and any regulations thereunder, as may be amended from time to time.
- (c) **Applicable Tax Legislation** means the *Income Tax Act* (Canada), the regulations thereunder and any applicable provincial income tax legislation relating to education savings plans, all as may be amended from time to time.
- (d) **Application** means the Subscriber's application for a Sun Life Global Investments Education Savings Plan.
- (e) **Assets of the Plan** means all amounts contributed to the Plan (including transfers to the Plan from another RESP), all Government Grants received by the Plan and all earnings and gains derived from investments, net of any losses and fees, charges and disbursements payable pursuant to section 13 and any other payments from the Plan, and includes all investments and uninvested cash held from time to time by the Trustee in accordance with the Plan.
- (f) **Beneficiary** means an individual, and **Beneficiaries** means the individuals, designated by the Subscriber in accordance with section 3, to whom or on whose behalf an Educational Assistance Payment will be paid if the individual qualifies under the Plan.
- (g) **Designated Educational Institution in Canada** means an educational institution in Canada that is a university, college or other educational institution designated by the Lieutenant Governor in Council of a province as a specified educational institution under the *Canada Student Loans Act*, designated by an appropriate authority under the *Canada Student Financial Assistance Act*, or designated by the Minister of Education of the Province of Quebec for the purpose of an Act respecting financial assistance for education expenses, R.S.Q., c. A-13.3.
- (h) **Designated Provincial Program** means a program, such as the Saskatchewan Advantage Grant for Education Savings program, administered pursuant to an agreement entered into under section 12 of the *Canada Education Savings Act* (Canada), or a program, such as the Quebec Education Savings Incentive, established under the laws of a province to encourage the financing of children's post-secondary education through savings in registered education savings plans.
- (i) **Educational Assistance Payment** means any amount, other than a Refund of Payments, paid out of the Plan in accordance with section 10(a) to or for the Beneficiary to assist the Beneficiary to further his or her education at a Post-Secondary School Level.
- (j) **Estate Representative** means an executor, an administrator, an administrator with the will annexed, a liquidator or an estate trustee with a will or without a will, whether one or more than one is appointed.
- (k) **Final Contribution Date** means the last day of the 31st year following the Plan Commencement Year.
- (l) **Final Termination Date** means the last day of the 35th year following the Plan Commencement Year.
- (m) **Government Grants** mean:
 - (i) the Canada Education Savings grant paid or payable under section 5 of the *Canada Education Savings Act* (Canada),
 - (ii) the Canada Learning Bond paid or payable under section 6 of the *Canada Education Savings Act* (Canada),
 - (iii) the Quebec Education Savings Incentive paid or payable under the *Taxation Act* (Quebec) in respect of contributions made after February 20, 2007, and
 - (iv) any grant payable under any other provincial education savings plan legislation which may be enacted and come into force from time to time, and any regulations thereunder, as may be amended from time to time.
- (n) **Plan** means the education savings plan established by the Application and this Plan Text.
- (o) **Plan Commencement Year** means:
 - (i) the year in which the Plan was originally entered into, or
 - (ii) where an amount has been transferred to the Plan from another RESP, the earlier of the year in which the Plan was originally entered into and the year in which the other RESP was established.
- (p) **Post-Secondary Educational Institution** means:
 - (i) a Designated Educational Institution in Canada,
 - (ii) an educational institution in Canada that is certified by the Minister of Employment and Social Development to be an educational institution providing courses, other than courses designed for university credit, that furnish a person with skills for, or improve a person's skills in, an occupation, or
 - (iii) an educational institution outside Canada that provides courses at a Post-Secondary School Level and that is:
 - A. a university, college or other educational institution at which the Beneficiary was enrolled in a course of not less than 13 consecutive weeks, or
 - B. a university at which the Beneficiary was enrolled on a full-time basis in a course of not less than three consecutive weeks.
- (q) **Post-Secondary School Level** includes a program of courses at an educational institution in Canada that is certified by the Minister of Employment and Social Development to be an educational institution providing courses, other than courses designed for university credit, of a technical or vocational nature designed to furnish a person with skills for, or improve a person's skills in, an occupation.
- (r) **Prohibited Investment** means Assets of the Plan (other than prescribed excluded property as that term is defined in the Applicable Tax Legislation) that are:
 - (i) a debt of the Subscriber;
 - (ii) a share of the capital stock of, an interest in or a debt of:
 - A. a corporation, partnership or trust in which the Subscriber has a significant interest;
 - B. a person or partnership that does not deal at arm's length with the Subscriber or with a person or partnership described in subparagraph A.;
 - (iii) an interest in, or right to acquire, a share, interest or debt described in paragraph (i) or (ii); or
 - (iv) prescribed property (as that term is defined in the Applicable Tax Legislation).
- (s) **Promoter** means **SLGI Asset Management Inc.** or any successor Promoter under section 19.
- (t) **Public Primary Caregiver** of a beneficiary under an education savings plan in respect of whom a special allowance is payable under the *Children's Special Allowances Act*, means the department, agency or institution that maintains the beneficiary or the public trustee or public curator of the province in which the beneficiary resides.
- (u) **Qualified Investment** means any investment, which is a qualified investment for an RESP according to Applicable Tax Legislation;
- (v) **Qualifying Educational Program** means a program at a Post-Secondary School Level of not less than 3 consecutive weeks duration that requires that each student taking the program spend not less than 10 hours per week on courses or work in the program.
- (w) **Refund of Payments** means:
 - (i) a refund of a contribution, if the contribution was made otherwise than by way of a transfer from another RESP, or
 - (ii) a refund of an amount that was paid into the Plan by way of a transfer from another RESP, where the amount would have been a refund of payments under the other RESP if it had been paid directly to a subscriber under the other RESP.
- (x) **RESP** means a "registered education savings plan" as defined in the Applicable Tax Legislation.
- (y) **RESP Lifetime Limit** means the "RESP lifetime limit" as defined in the Applicable Tax Legislation.
- (z) **RRSP** means a registered retirement savings plan as defined in the Applicable Tax Legislation.
- (aa) **Specified Educational Program** means a program at a Post-Secondary School Level of not less than three consecutive weeks duration that requires each student taking the program to spend not less than 12 hours per month on courses in the program.
- (bb) **Subscriber**, at any time, means:
 - (i) each individual or the Public Primary Caregiver (as defined in the Applicable Tax Legislation) identified as a Subscriber in the Application,
 - (ii) another individual or another Public Primary Caregiver who has before that time, under a written agreement, acquired a Public Primary Caregiver's rights as a Subscriber under the Plan,
 - (iii) an individual who has before that time acquired a Subscriber's rights under the Plan pursuant to a decree, order or judgment of a competent tribunal, or under a written agreement, relating to a division of property between the individual and a Subscriber under the Plan in settlement of rights arising out of, or on the breakdown of, their marriage or common-law partnership,
 - (iv) after the death of an individual described in any of (i) to (iii) above, any other person (including the estate of the deceased individual) who acquires the individual's right as a Subscriber under the Plan or who makes contributions into the Plan in respect of a Beneficiary,
 - (v) where 2 individuals are identified as Subscribers in the Application, each individual must be a spouse or common-law partner.
 - (vi) after March 27, 2023, an individual (other than a trust), who is a legal parent of a Beneficiary, and the individual's former spouse or former common-law partner, who is also the legal parent of a Beneficiary, but does not include an individual or a Public Primary Caregiver whose rights as a Subscriber under the Plan had, before that time, been acquired by an individual or Public Primary Caregiver in the circumstances described in (ii) or (iii) above.When the context requires or permits, the singular "Subscriber" shall be read as if the plural "Subscribers" was used.
- (cc) **Trustee** means The Royal Trust Company or any replacement Trustee appointed pursuant to section 16.

2. AGREEMENT

The application of the Subscriber for a Sun Life Global Investments Education Savings Plan and this Plan Text constitute an agreement between the Promoter, the Trustee and the Subscriber for an education savings plan.

3. BENEFICIARY

The Subscriber can designate one or more individuals as Beneficiaries of the Plan provided that each such individual is connected to each living Subscriber, or was connected to a deceased original Subscriber, by blood relationship or adoption (as defined in the Applicable Tax Legislation) and provided that a designation in respect of a particular individual can only be made if:

- the individual is under 21 years of age at the time of designation, or
 - the individual was, immediately before the time of designation, a beneficiary under another RESP that allows more than one beneficiary at any one time.
- In addition, a designation made after 2003 of a particular individual can only be made if:
- the individual's social insurance number is provided to the Promoter before the designation and the individual is resident in Canada at the time of the designation, or
 - the designation is made in conjunction with a transfer of property into the Plan from another RESP under which the individual was a beneficiary immediately before the transfer and, except where the individual is not a resident of Canada and was not assigned a social insurance number before the designation is made, the individual's social insurance number is provided to the Promoter before the designation.

At any time, subject to the conditions above, the Subscriber may designate another individual to replace a Beneficiary by delivering to the Promoter written notice of such designation in a form satisfactory to, and containing the information required by, the Promoter. If more than one such replacement designation has been delivered to the Promoter, the one bearing the latest date will govern.

4. NOTICE OF BENEFICIARY DESIGNATION

Within 90 days after a Beneficiary has been designated by the Subscriber, the Promoter shall notify the Beneficiary (or, where the Beneficiary is under 19 years of age at the time of designation and either ordinarily resides with a parent or legal guardian of the Beneficiary or is maintained by a public primary caregiver (as defined in the Applicable Tax Legislation) of the Beneficiary, that parent, legal guardian or public primary caregiver) in writing of the existence of the Plan and the name and address of the Subscriber.

5. CONTRIBUTIONS

Contributions into the Plan do not include amounts paid into the Plan under or because of the Applicable Grant Legislation or, pursuant to the Income Tax Act, amounts paid into the Plan under or because of a Designated Provincial Program, or any other program that has a similar purpose to a Designated Provincial Program and that is funded, directly or indirectly, by a province (other than an amount paid into the plan by a Public Primary Caregiver in its capacity as Subscriber under the plan).

No contribution may be made to the Plan other than a contribution made by or on behalf of the Subscriber in respect of the Beneficiary or a contribution made by way of transfer from another RESP, provided that:

- the Beneficiary is resident in Canada when the contribution is made and, unless the Plan was entered into before 1999, the Beneficiary's social insurance number is provided to the Promoter before the contribution is made,
- the contribution is made by way of transfer from another RESP under which the Beneficiary was a beneficiary immediately before the transfer, or
- the contribution is made by way of transfer from another RESP, and the parent (as that term is defined at paragraph 252(2)(a) of the Income Tax Act (Canada)) of the Beneficiary was the parent of an individual who was a beneficiary under the other RESP, and the Beneficiary is a resident in Canada when the contribution by way of transfer is made and, unless the Plan was entered into before 1999, the Beneficiary's social insurance number is provided to the Promoter before the contribution by way of transfer is made.

Notwithstanding the foregoing:

- a contribution in respect of a Beneficiary, other than a contribution made by way of transfer from another family plan, can only be made if the Beneficiary is under 31 years of age at the time of the contribution,

The Subscriber is solely responsible for ensuring that the total amount of contributions made in respect of each Beneficiary under the Plan and any other RESPs does not exceed the RESP Lifetime Limit.

6. GOVERNMENT GRANTS

Where a Beneficiary is eligible for Government Grants under the Applicable Grant Legislation, at the request of the Subscriber and upon completion and delivery of all forms required under the Applicable Grant Legislation and by the Promoter, the Promoter will apply for Government Grants in respect of the Beneficiary. The Promoter and the Trustee are not responsible for determining whether the Beneficiary is eligible for Government Grants.

The Promoter will cause the Trustee to pay out of the Assets of the Plan any refund of Government Grants required under the Applicable Grant Legislation and Applicable Tax Legislation.

7. INVESTING

The Assets of the Plan will be invested in accordance with the Subscriber's instructions, in a form satisfactory to the Promoter, provided that any proposed investment complies with the Promoter's investment requirements, if any, communicated to the Subscriber from time to time. The Promoter may, in its sole discretion, retain a portion of the Assets of the Plan in cash for the administration of the Plan. If the Plan has a cash deficit, as determined by the Promoter in its sole discretion, the Promoter may cause the realization of investments in the Plan, at the Promoter's choosing, to cover such cash deficit including for the purposes of paying expenses, taxes, fees and other amounts including for greater certainty, fees and other amounts payable under section 13. Any uninvested cash will be placed on deposit with the Trustee or an affiliate of the Trustee. The interest payable to the Plan in respect of such cash balances will be determined by the Promoter from time to time in its sole discretion with no obligation to pay a minimum amount or rate. The Trustee will pay interest to the Promoter for inclusion in the Plan and the Promoter shall credit the Assets of the Plan with appropriate interest. The Trustee shall have no responsibility to ensure the interest is included in the Assets of the Plan by the Promoter and will not be liable if such inclusion is not made.

Any segregated fund investments will be held in nominee name. The Promoter and Subscriber shall designate the Trustee as the beneficiary under any segregated fund held under the Plan. Upon the death of the Subscriber, the proceeds of the segregated fund shall be paid to the Plan and form part of the Assets of the Plan to be dealt with according to the terms of this Plan Text.

It is the sole responsibility of the Subscriber to select investments of the Plan and to determine whether any investment should be purchased, sold or retained by the Plan. In the absence of any instructions from the Subscriber, the Promoter may, in its sole discretion, cause the realization of sufficient investments to permit the payment of any amounts required to be paid under the Plan.

The investment of the assets of the Plan shall not be limited in any way to investments authorized for trustees under, or to the criteria in planning or the requirements for diversifying the investment of the assets of the Plan as may be prescribed for trustees by, any applicable federal, provincial or territorial legislation. It is the sole responsibility of the Subscriber to ensure that investments of the Plan are and remain Qualified Investments and that any such investment is not and continues not to be a Prohibited Investment. After March 22, 2017, the Promoter shall exercise the care, diligence and skill of a reasonably prudent person to minimize the possibility that the Plan holds a non-Qualified Investment.

8. CORPORATE ACTIONS

The Promoter and the Trustee will not have any duty or responsibility to vote, subscribe, convert or tender the Assets of the Plan in respect of any merger, consolidation, reorganization, receivership, bankruptcy, insolvency proceedings, take-over bids, issuer bids, rights offerings or similar events with respect to the investments of the Plan, except in accordance with a direction from the Subscriber.

9. REFUND OF PAYMENTS

At any time, the Subscriber may, in a written form satisfactory to the Promoter, request a Refund of Payments, such amount not to exceed the value of the Assets of the Plan less the total amount of all Government Grants held in the Plan.

Within 30 days of receipt of the written request by the Promoter (or such shorter period as the Promoter may determine in its sole discretion), the Refund of Payments will be paid to the Subscriber or to a Beneficiary if so directed by the Subscriber in writing.

Where there is more than one Subscriber at the time a Refund of Payments is requested, the Refund of Payments is deemed to be owed to both Subscribers jointly and may be paid to either both Subscribers or to either one of them, as directed by the Subscribers. Absent such direction, the Refund of Payments will be paid to both Subscribers jointly. Any Refund of Payments made to one or both Subscribers, as the case may be, shall constitute a valid discharge to the Promoter and Trustee for the Refund of Payments paid.

10. EDUCATIONAL ASSISTANCE AND OTHER PAYMENTS

Upon receipt of instructions from the Subscriber in a form satisfactory to the Promoter, the Promoter shall cause the Trustee to pay out of the Assets of the Plan, including any Government Grants held in the Plan subject to the provisions of the Applicable Grant Legislation, such amount or amounts as the Subscriber directs:

- to or for a Beneficiary as an Educational Assistance Payment
 - provided either that the Beneficiary
 - is enrolled at a Post-Secondary Educational Institution as a student in a Qualifying Educational Program, or
 - has attained the age of 16 years and is enrolled as a student in a Specified Educational Program at a Post-Secondary School; and
 - provided either that the Beneficiary
 - has satisfied the condition set out in section 10(a)(i)A., and
 - has done so throughout at least 13 consecutive weeks in the 12-month period that ends at that time, or
 - the total of the Educational Assistance Payment and all other education assistance payments made under this Plan and any other RESP of the Promoter to or for the Beneficiary in the 12-month period that ends at that time does not exceed \$5,000 before March 28, 2023 and \$8,000 after March 27, 2023 or any greater amount that the Minister designated for the purposes of the Canada Education Savings Act approves in writing with respect to the Beneficiary; or

- B. satisfies the condition set out in subparagraph 10(a)(i)B. and the total of the payment and all other Educational Assistance Payments made under a RESP of the Promoter to or for the Beneficiary in the 13-week period that ends at that time does not exceed \$2,500 before March 28, 2023 and \$4,000 after March 27, 2023 or any greater amount that the Minister designated for the purpose of the Canada Education Savings Act approves in writing with respect to the Beneficiary.

Notwithstanding the above, an Educational Assistance Payment may be paid at any time in the six-month period immediately following the time at which the Beneficiary ceases to be enrolled as a student in the Qualifying Educational Program or the Specified Educational Program if the Educational Assistance Payment would have complied with the above requirements had it been made immediately before that time.

The Trustee will cause all or a portion of each Educational Assistance Payment to be paid from any Government Grants held in the Plan as permitted by and pursuant to the terms of the Applicable Grant Legislation. The Promoter will determine whether the conditions for paying an Educational Assistance Payment have been satisfied and such determination shall be final and binding on the Subscriber and Beneficiary;

- (b) to, or to a trust in favour of, a Designated Educational Institution in Canada;
- (c) to another RESP so long as no Accumulated Income Payment has been paid under section 10(d); or
- (d) as an Accumulated Income Payment provided that:
 - (i) the payment is made to, or on behalf of, a Subscriber who is resident in Canada for tax purposes when the payment is made,
 - (ii) the payment is not made jointly to, or on behalf of, more than one Subscriber, and
 - (iii) any of
 - A. the payment is made after the 9th year that follows the year of the Plan Commencement Year and each individual (other than a deceased individual) who is or was a Beneficiary has attained 21 years of age before the payment is made and is not, when the payment is made, eligible under the Plan to receive an Educational Assistance Payment,
 - B. the payment is made in the 35th year following the Plan Commencement Year, or
 - C. each individual who was a Beneficiary is deceased when the payment is made.

At the Subscriber's request and on receipt of the requisite supporting documentation, where a Beneficiary suffers from a severe and prolonged mental impairment that prevents, or can reasonably be expected to prevent, the Beneficiary from enrolling in a Qualifying Educational Program at a Post-Secondary Educational Institution, the Promoter will apply to the Minister of National Revenue for permission to waive the condition in section 10(d)(iii)(A) for making Accumulated Income Payments.

Where there is more than one Subscriber at the time an Accumulated Income Payment is requested, the payment shall be made to the Subscriber who requested it. Any such payment made to either one of the Subscribers, as requested, shall constitute a valid discharge to the Promoter and Trustee for the payment made.

11. TERMINATION

The Plan will be terminated on the earliest of the following dates:

- (a) the date indicated by the Subscriber in the Application or such other date designated by the Subscriber by written instrument satisfactory to the Promoter. (If more than one such instrument has been delivered to the Promoter, the one bearing the latest date will govern.);
- (b) the last day of February in the year following the year in which the first Accumulated Income Payment is made from the Plan,
- (c) the date the registration of the Plan as a RESP is revoked by the Minister of National Revenue, and
- (d) the Final Termination Date.

Where any Assets of the Plan remain on or immediately before the termination of the Plan, the Promoter shall cause the Trustee to pay from the Assets of the Plan:

- (e) any fees or charges that remain unpaid,
- (f) a Refund of Payments to the Subscriber in the amount that would be permitted under section 9,
- (g) a repayment of any Government Grants as required under the Applicable Grant Legislation, and
- (h) any amount remaining in the Plan after the payments described in (e), (f) and (g) above, to the Designated Educational Institution in Canada designated by the Subscriber or, where such designation has not been made, chosen by the Promoter.

12. DESIGNATED EDUCATIONAL INSTITUTION IN CANADA

The Subscriber shall designate a Designated Education Institution in Canada in a form satisfactory to the Promoter. At any time, the Subscriber may change the Designated Educational Institution in Canada by delivering to the Promoter written notice of such change in a form satisfactory to, and containing the information required by, the Promoter. If more than one such notice has been delivered to the Promoter, the one bearing the latest date will govern.

13. FEES AND CHARGES

Subject to any limitations in the Applicable Grant Legislation, the Promoter and the Trustee shall be entitled to such reasonable fees and charges as may be established from time to time for their services under the Plan and to reimbursement for all costs and disbursements (including all taxes) reasonably incurred in the performance of their duties hereunder including brokerage fees, commissions and other expenses incurred in the making of any investment. The Promoter and the Trustee are entitled to change the amount of such fees or charges in the future, upon reasonable notice to the Subscriber. Unless paid directly to the Promoter and Trustee, all amounts payable pursuant to this section (together with any applicable taxes) shall be charged against, and deducted from, the Assets of the Plan (excluding any Government Grants) in such manner as the Promoter and the Trustee determine and the Promoter may, in its sole discretion, cause the realization of investments held in the Plan, at the Promoter's choosing, for the purpose of paying such fees and other amounts.

The Subscriber authorizes both the Promoter and the Trustee, together or separately, to appoint and employ agents to who both may delegate, respectively any of the Promoter's and the Trustee's powers, duties and responsibilities under the Plan.

14. APPOINTMENT AND RESPONSIBILITIES OF TRUSTEE

The Trustee agrees to act as trustee of the Assets of the Plan and shall, subject to the payment of fees and charges pursuant to section 13, irrevocably hold, invest and reinvest the Assets of the Plan for the following purposes:

- (a) the payment of Educational Assistance Payments,
- (b) the payment of Accumulated Income Payments,
- (c) the Refund of Payments,
- (d) the repayment of amounts (and the payment of amounts related to that repayment) under the *Canada Education Savings Act* (Canada) or under a Designated Provincial Program,
- (e) the payment to, or to a trust in favour of, Designated Educational Institutions in Canada, or
- (f) the payment to a trust that irrevocably holds property pursuant to a registered education savings plan for any of the purposes set out in (a) to (e) above.

The Trustee shall file all information returns and other documents in respect of the Plan as required under the Applicable Tax Legislation and the Applicable Grant Legislation.

15. SELF-DEALING

The Trustee's services are not exclusive and, subject to the limitations otherwise provided in these terms and conditions on the powers of the Trustee, the Trustee may, for any purpose, and is hereby expressly authorized from time to time in its sole discretion to, appoint, employ, invest in, contract or deal with any individual, firm, partnership, association, trust or body corporate, with which it may be directly or indirectly interested or affiliated with, whether on its own account or on the account of another (in a fiduciary capacity or otherwise), and to profit therefrom, without being liable to account therefor and without being in breach of these terms and conditions.

16. REPLACING THE TRUSTEE

The Trustee may resign as trustee of the Plan by providing written notice of such resignation within the notice period agreed upon by the Promoter and the Trustee in writing. The Trustee will resign upon receiving 90 days' written notice from the Promoter so long as it is satisfied that the proposed replacement Trustee will properly assume and fulfill the Trustee's duties and liabilities hereunder.

Upon receiving notice of resignation from the Trustee, or upon providing notice to the Trustee to resign, the Promoter shall forthwith select a replacement Trustee. If the Promoter fails to nominate a replacement Trustee within 30 days after receipt of the notice of resignation or providing the notice to the Trustee to resign, the Trustee shall be entitled to appoint a replacement Trustee. The resignation of the Trustee will not be effective until the replacement Trustee has been appointed and until notice of the replacement has been provided by the Promoter to the Minister of Employment and Social Development and any other governmental authority which may require such notice.

Upon the appointment of a replacement Trustee, the replacement Trustee shall, without further act or formality, be and become the Trustee hereunder and, without any conveyance or transfer, be vested with the same power, rights, duties and responsibilities as the Trustee and with the Assets of the Plan as if the replacement Trustee had been the original Trustee. The Trustee shall execute and deliver to the replacement Trustee all such conveyances, transfers and further assurances as may be necessary or advisable to give effect to the appointment of the replacement Trustee.

Any replacement Trustee must be a corporation resident in Canada that is licensed or otherwise authorized under the laws of Canada or a province to carry on in Canada the business of offering to the public its services as a trustee. Any trust company resulting from the merger or amalgamation of the Trustee with one or more trust companies and any trust company that succeeds to substantially all of the trust business of the Trustee will become the replacement Trustee without further act or formality, subject to prior notice being provided to the Minister of Employment and Social Development and any other governmental authority which may require such prior notice.

The Promoter shall give notice of the replacement of the Trustee to the Subscriber, the Minister of National Revenue, and any other governmental authority which may require such notice.

17. RESPONSIBILITIES OF THE PROMOTER

The Promoter has ultimate responsibility for the Plan, including the administration of the Plan in accordance with these terms and conditions. The Promoter will apply for the registration of the Plan as a RESP in accordance with the Applicable Tax Legislation.

The Promoter shall file all information returns and other documents in respect of the Plan as required under the Applicable Tax Legislation and the Applicable Grant Legislation.

18. STATEMENTS AND RECORDS

The Promoter will maintain an account for the Plan in which will be recorded:

- (a) contributions to the Plan by or on behalf of the Subscriber,
- (b) investments, investment transactions and investment income, gains and losses,
- (c) amounts and recipients of Educational Assistance Payments,
- (d) amounts transferred to another RESP,
- (e) Government Grants repayments,
- (f) amounts paid to Designated Educational Institutions in Canada,
- (g) the Refund of Payments available to be made to the Subscriber and the Refunds of Payments already made,
- (h) the amount of fees and other charges payable by the Plan,
- (i) Accumulated Income Payments, and
- (j) the balance of any Government Grants held in the Plan and any other information required under an agreement between the Promoter and the Employment and Social Development Canada and any other governmental authority respecting Government Grants.

An annual (or more frequent at the sole discretion of the Promoter) statement will be sent to the Subscriber showing the transactions affecting the Plan for the preceding year.

19. REPLACING THE PROMOTER

Provided the written consent of the Trustee has been obtained, such consent not to be unreasonably withheld, at any time, the Promoter may assign its rights and obligations under the Plan to any other corporation resident in Canada that is authorized to assume and discharge the obligations of the Promoter under the Plan so long as prior notice has been provided by the Promoter to the Minister of Employment and Social Development and any other governmental authority which may require such prior notice. Any such assignee shall execute any agreements and other documents that are necessary for the purpose of assuming such rights and obligations.

The successor Promoter shall give notice of the replacement of the Promoter to the Subscriber, the Minister of National Revenue, any other governmental authority which may require such notice.

20. LIMITATION OF LIABILITY OF TRUSTEE AND PROMOTER

Other than those taxes for which the Promoter is liable and that cannot be charged against or deducted from the Assets of the Plan in accordance with Applicable Tax Legislation:

- (a) the Promoter and the Trustee shall not be liable for any loss or damage suffered or incurred by the Plan, a Subscriber or the Beneficiary as a result of the purchase, sale or retention of any investment including any loss resulting from the Promoter or the Trustee acting on the direction of an agent appointed by a Subscriber to provide investment direction.
- (b) the Promoter and the Trustee shall not be liable in their personal capacity for any tax, interest or penalty which may be imposed on the Trustee in respect of the Plan under Applicable Tax Legislation, as a result of payment out of the Plan or the purchase, sale or retention of any investment (including any investment that is not a Qualified Investment; "qualified investment" within the meaning of the Applicable Tax Legislation).
- (c) the Subscriber will at all times indemnify the Promoter and the Trustee and save the Promoter and the Trustee harmless in respect of any Government Grant repayments required to be made or taxes which may be imposed on the Promoter or the Trustee as a result of the acquisition, retention or transfer of any investments or as a result of payments or distributions out of the Plan made in accordance with these terms and conditions or as a result of the Promoter or the Trustee acting or declining to act upon any instructions given to the Promoter or the Trustee, whether by the Subscriber or any agent appointed by the Subscriber to provide investment direction.

21. AMENDMENTS TO THE PLAN

The Trustee or Promoter may change the terms of this Plan Text periodically. The Subscriber will be provided with notice of any such changes. No change to these terms and conditions shall have the effect of disqualifying the Plan as a RESP or disqualifying a Beneficiary as a recipient of Government Grants under the Applicable Grant Legislation and any change may be retroactive.

22. NOTICE

Any notice given by the Subscriber to the Promoter or Trustee shall be sufficiently given if delivered to the office of the Promoter where the Plan is administered or, if mailed, postage prepaid, addressed to the Promoter at such office and shall be deemed to have been given on the date such notice is delivered or received by the Promoter.

Any notice, statement or receipt to be given by the Promoter to the Subscriber shall be sufficiently given if delivered personally to the Subscriber or, if mailed, postage prepaid, addressed to the Subscriber at the address set out in the Application unless the Subscriber or, where applicable, the Subscriber's Estate Representative or personal representative has notified the Promoter of a new address. Any such notice, statement or receipt shall be deemed to have been given at the time of personal delivery to the Subscriber or, if mailed, on the third day after mailing.

23. SUBSCRIBER INSTRUCTIONS

All directions, instructions, designations and other information to be provided under the Plan by the Subscriber must be in a form acceptable to the Promoter and the Trustee.

24. PRIVACY

The Subscriber agrees that any information provided by the Subscriber to the Promoter may be used by and shared between the Trustee, the Government of Canada and the applicable province or territory as required for the administration of the Plan in accordance with these terms and conditions, Applicable Grant Legislation, Applicable Tax Legislation and otherwise in accordance with applicable laws.

25. DATE OF BIRTH AND RESIDENCY

The Subscriber's statement of a Beneficiary's date of birth on the Application or a written designation shall be deemed to be a certification of the Beneficiary's age and an undertaking by the Subscriber to provide any further evidence of proof of age as may be required by the Promoter.

The Trustee and Promoter shall be entitled to rely upon the Promoter's records as to the current address of the Beneficiary and the Subscriber as establishing his or her respective residency and domicile for the operation of the Plan and any payments from it, subject to the receipt of any written notice to the contrary respecting a change in residency or domicile prior to such payment being made.

26. SUBSCRIBER DEATH

The Promoter and the Trustee are each authorized as each determines advisable in its sole discretion to release any information about the Plan after the Subscriber's death to either the Subscriber's Estate Representative or a Beneficiary, or both. If the Beneficiary is a minor at the time of his or her death, such information may be released to his or her custodial parent, legal guardian or Public Primary Caregiver. Where a Subscriber dies at a time when there are two Subscribers:

- (a) if the Plan was opened outside of the Province of Quebec, the survivor shall assume all rights, privileges and obligations of the deceased Subscriber and the heirs, successors, assigns and legal representatives of the deceased Subscriber shall have no rights under the Plan; or
- (b) if the Plan was opened in the Province of Quebec, the *Civil Code* of Quebec and other applicable laws will apply.

27. PAYMENT INTO COURT

If there is a dispute about who is legally authorized to direct and receive payments from the Plan after the death of the Subscriber, the Promoter and the Trustee are entitled to either apply to the court for directions or to pay all or a portion of the Assets of the Plan into court and, in either case, fully recover any legal costs incurred in this regard as a cost or disbursement in respect of the Plan. The Promoter and the Trustee will not be liable for any penalty, or any loss or damage resulting from the repayment of Government Grants as required under the Applicable Grant Legislation, that may occur as a result of any such payment of Assets of the Plan into court.

28. HEIRS, REPRESENTATIVES AND ASSIGNS

These terms and conditions shall be binding upon the heirs, Estate Representatives, attorneys, committees, guardians of property, other legal and personal representatives and assigns of the Subscriber and upon the respective successors and assigns of the Trustee and the Promoter and their directors, officers, employees and agents, as well as their respective estates, Estate Representatives, heirs, attorneys, committees, guardians of property, other legal and personal representatives and assigns.

29. Language/ Langue (Quebec residents only – Résidents du Québec seulement).

The Subscriber acknowledges that he/she was offered the choice to enter into this agreement in English or French and has expressly requested to enter into such agreement exclusively in English, after receiving a French version. The Subscriber expressly agrees that such agreement and all related documents, including notices, will be exclusively in English. Le titulaire reconnaît qu'on lui a offert le choix de conclure cette convention en français ou en anglais et qu'il a expressément demandé à ce qu'elle soit exclusivement en anglais, après avoir reçu la version française. Par conséquent, il consent expressément à ce que cette convention et tous les documents qui s'y rattachent, y compris les avis, soient exclusivement rédigés en anglais.

30. GOVERNING LAW

The Plan shall be governed by and construed in accordance with the laws of the Province of Ontario and the laws of Canada applicable therein.

The Subscriber expressly agrees that any action arising out of or relating to the Plan shall be filed only in a court located in Canada and the Subscriber irrevocably consents and submits to the jurisdiction of such court for the purposes of litigating any such action.

(4/10/2012)

Sun Life Global Investments Education Savings Plan

Plan Text (Individual Plan)

1. DEFINED TERMS:

- (a) **Accumulated Income Payment** means any amount paid out of the Plan, other than a payment described in any of sections 14(a) and 14(c) to 14(f), to the extent that the amount so paid exceeds the fair market value of any consideration given to the Plan for the payment of the amount.
- (b) **Applicable Grant Legislation** means the *Canada Education Savings Act* (Canada), the *Taxation Act* (Quebec) with respect to the Quebec Education Savings Incentive, and any other provincial education savings plan legislation that may be enacted and come into force from time to time, as the case may be, and any regulations thereunder, as may be amended from time to time.
- (c) **Applicable Tax Legislation** means the *Income Tax Act* (Canada), the regulations thereunder and any applicable provincial income tax legislation relating to education savings plans, all as may be amended from time to time.
- (d) **Application** means the Subscriber's application for a Sun Life Global Investments Education Savings Plan.
- (e) **Assets of the Plan** means all amounts contributed to the Plan (including transfers to the Plan from another RESP), all Government Grants received by the Plan and all earnings and gains derived from investments, net of any losses and fees, charges and disbursements payable pursuant to section 13 and any other payments from the Plan, and includes all investments and uninvested cash held from time to time by the Trustee in accordance with the Plan.
- (f) **Beneficiary** means the individual, designated by the Subscriber in accordance with section 3, to whom or on whose behalf an Educational Assistance Payment will be paid if the individual qualifies under the Plan.
- (g) **Designated Educational Institution in Canada** means an educational institution in Canada that is a university, college or other educational institution designated by the Lieutenant Governor in Council of a province as a specified educational institution under the *Canada Student Loans Act*, designated by an appropriate authority under the *Canada Student Financial Assistance Act*, or designated by the Minister of Education of the Province of Quebec for the purpose of An Act respecting financial assistance for education expenses, R.S.Q., c. A-13.3.
- (h) **Designated Provincial Program** means a program, such as the Saskatchewan Advantage Grant for Education Savings program, administered pursuant to an agreement entered into under section 12 of the *Canada Education Savings Act* (Canada), or a program, such as the Quebec Education Savings Incentive, established under the laws of a province to encourage the financing of children's post-secondary education through savings in registered education savings plans.
- (i) **Educational Assistance Payment** means any amount, other than a Refund of Payments, paid out of the Plan in accordance with section 10(a) to or for the Beneficiary to assist the Beneficiary to further his or her education at a Post-Secondary School Level.
- (j) **Estate Representative** means an executor, an administrator, an administrator with the will annexed, a liquidator or an estate trustee with a will or without a will, whether one or more than one is appointed.
- (k) **Final Contribution Date** means:
 - (i) where the Plan is not a Specified Plan, the last day of the 31st year following the Plan Commencement Year, and
 - (ii) where the Plan is a Specified Plan, the last day of the 35th year following the Plan Commencement Year.
- (l) **Final Termination Date** means:
 - (i) where the Plan is not a Specified Plan, the last day of the 35th year following the Plan Commencement Year, and
 - (ii) where the Plan is a Specified Plan, the last day of the 40th year following the Plan Commencement Year.
- (m) **Government Grants** mean:
 - (i) the Canada Education Savings grant paid or payable under section 5 of the *Canada Education Savings Act* (Canada),
 - (ii) the Canada Learning Bond paid or payable under section 6 of the *Canada Education Savings Act* (Canada),
 - (iii) the Quebec Education Savings Incentive paid or payable under the *Taxation Act* (Quebec) in respect of contributions made after February 20, 2007, and
 - (iv) any grant payable under any other provincial education savings plan legislation which may be enacted and come into force from time to time, and any regulations thereunder, as may be amended from time to time.
- (n) **Plan** means the education savings plan established by the Application and this Plan Text.
- (o) **Plan Commencement Year** means:
 - (i) the year in which the Plan was originally entered into, or
 - (ii) where an amount has been transferred to the Plan from another RESP, the earlier of the year in which the Plan was originally entered into and the year in which the other RESP was established.
- (p) **Post-Secondary Educational Institution** means:
 - (i) a Designated Educational Institution in Canada,
 - (ii) an educational institution in Canada that is certified by the Minister of Employment and Social Development to be an educational institution providing courses, other than courses designed for university credit, that furnish a person with skills for, or improve a person's skills in, an occupation, or
 - (iii) an educational institution outside Canada that provides courses at a Post-Secondary School Level and that is:
 - A. a university, college or other educational institution at which the Beneficiary was enrolled in a course of not less than 13 consecutive weeks, or
 - B. a university at which the Beneficiary was enrolled on a full-time basis in a course of not less than three consecutive weeks.
- (q) **Post-Secondary School Level** includes a program of courses at an educational institution in Canada that is certified by the Minister of Employment and Social Development to be an educational institution providing courses, other than courses designed for university credit, of a technical or vocational nature designed to furnish a person with skills for, or improve a person's skills in, an occupation.
- (r) **Prohibited Investment** means Assets of the Plan (other than prescribed excluded property as that term is defined in the Applicable Tax Legislation) that are:
 - (i) a debt of the Subscriber;
 - (ii) a share of the capital stock of, an interest in or a debt of:
 - A. a corporation, partnership or trust in which the Subscriber has a significant interest;
 - B. a person or partnership that does not deal at arm's length with the Subscriber or with a person or partnership described in subparagraph A.;
 - (iii) an interest in, or right to acquire, a share, interest or debt described in paragraph (i) or (ii); or
 - (iv) prescribed property (as that term is defined in the Applicable Tax Legislation).
- (s) **Promoter** means SLGI Asset Management Inc. or any successor Promoter under section 19.
- (t) **Public Primary Caregiver** of a beneficiary under an education savings plan in respect of whom a special allowance is payable under the *Children's Special Allowances Act*, means the department, agency or institution that maintains the beneficiary or the public trustee or public curator of the province in which the beneficiary resides.
- (u) **Qualified Investment** means any investment, which is a qualified investment for an RESP according to Applicable Tax Legislation;
- (v) **Qualifying Educational Program** means a program at a Post-Secondary School Level of not less than 3 consecutive weeks duration that requires that each student taking the program spend not less than 10 hours per week on courses or work in the program.
- (w) **Refund of Payments** means:
 - (i) a refund of a contribution, if the contribution was made otherwise than by way of a transfer from another RESP, or
 - (ii) a refund of an amount that was paid into the Plan by way of a transfer from another RESP, where the amount would have been a refund of payments under the other RESP if it had been paid directly to a subscriber under the other RESP.
- (x) **RESP** means a "registered education savings plan" as defined in the Applicable Tax Legislation.
- (y) **RESP Lifetime Limit** means the "RESP lifetime limit" as defined in the Applicable Tax Legislation.
- (z) **RRSP** means a registered retirement savings plan as defined in the Applicable Tax Legislation.
- (aa) **Specified Educational Program** means a program at a Post-Secondary School Level of not less than three consecutive weeks duration that requires each student taking the program to spend not less than 12 hours per month on courses in the program.
- (bb) **Specified Plan** means an education savings plan:
 - (i) that does not allow more than one Beneficiary at any one time,
 - (ii) under which the Beneficiary is an individual in respect of whom paragraphs 118.3(1)(a) to (b) of the *Income Tax Act* (Canada) apply for the Beneficiary's taxation year that ends in the 31st year following the Plan Commencement Year, and
 - (iii) that provides that, at all times after the end of the 35th year following the Plan Commencement Year, no other individual may be designated as a Beneficiary;
- (cc) **Subscriber**, at any time, means:
 - (i) each individual or the Public Primary Caregiver (as defined in the Applicable Tax Legislation) identified as a Subscriber in the Application,
 - (ii) another individual or another Public Primary Caregiver who has before that time, under a written agreement, acquired a Public Primary Caregiver's rights as a Subscriber under the Plan,

- (iii) an individual who has before that time acquired a Subscriber's rights under the Plan pursuant to a decree, order or judgment of a competent tribunal, or under a written agreement, relating to a division of property between the individual and a Subscriber under the Plan in settlement of rights arising out of, or on the breakdown of, their marriage or common-law partnership,
- (iv) after the death of an individual described in any of (i) to (iii) above, any other person (including the estate of the deceased individual) who acquires the individual's right as a Subscriber under the Plan or who makes contributions into the Plan in respect of a Beneficiary,
- (v) where 2 individuals are identified as Subscribers in the Application, each individual must be a spouse or common-law partner.
- (vi) after March 27, 2023, an individual (other than a trust), who is a legal parent of a Beneficiary, and the individual's former spouse or former common-law partner, who is also the legal parent of a Beneficiary, but does not include an individual or a Public Primary Caregiver whose rights as a Subscriber under the Plan had, before that time, been acquired by an individual or Public Primary Caregiver in the circumstances described in (ii) or (iii) above.

When the context requires or permits, the singular "Subscriber" shall be read as if the plural "Subscribers" was used.

- (dd) **Trustee** means The Royal Trust Company or any replacement Trustee appointed pursuant to section 16.

2. AGREEMENT

The application of the Subscriber for a Sun Life Global Investments Education Savings Plan and this Plan Text constitute an agreement between the Promoter, the Trustee and the Subscriber for an education savings plan.

3. BENEFICIARY

Any individual may be designated by the Subscriber in the Application as the Beneficiary. A designation made after 2003 can only be made if:

- (a) the individual's social insurance number is provided to the Promoter before the designation and the individual is resident in Canada at the time of the designation, or
- (b) the designation is made in conjunction with a transfer of property into the Plan from another RESP under which the individual was a beneficiary immediately before the transfer and, except where the individual is not a resident of Canada and was not assigned a social insurance number before the designation is made, the individual's social insurance number is provided to the Promoter before the designation.

At any time, subject to the conditions above, the Subscriber may designate a replacement Beneficiary by delivering to the Promoter written notice of such designation in a form satisfactory to, and containing the information required by, the Promoter. If more than one such replacement designation has been delivered to the Promoter, the one bearing the latest date will govern.

4. NOTICE OF BENEFICIARY DESIGNATION

Within 90 days after a Beneficiary has been designated by the Subscriber, the Promoter shall notify the Beneficiary (or, where the Beneficiary is under 19 years of age at the time of designation and either ordinarily resides with a parent or legal guardian of the Beneficiary or is maintained by a public primary caregiver (as defined in the Applicable Tax Legislation) of the Beneficiary, that parent, legal guardian or public primary caregiver) in writing of the existence of the Plan and the name and address of the Subscriber.

5. CONTRIBUTIONS

Contributions into the Plan do not include amounts paid into the Plan under or because of the Applicable Grant Legislation or, pursuant to the Income Tax Act, amounts paid into the Plan under or because of a Designated Provincial Program, or any other program that has a similar purpose to a Designated Provincial Program and that is funded, directly or indirectly, by a province (other than an amount paid into the plan by a Public Primary Caregiver in its capacity as Subscriber under the plan). No contribution may be made to the Plan other than a contribution made by or on behalf of the Subscriber in respect of the Beneficiary or a contribution made by way of transfer from another RESP, provided that:

- (a) the Beneficiary is resident in Canada when the contribution is made and, unless the Plan was entered into before 1999, the Beneficiary's social insurance number is provided to the Promoter before the contribution is made,
- (b) the contribution is made by way of transfer from another RESP under which the Beneficiary was a beneficiary immediately before the transfer, or
- (c) the contribution is made by way of transfer from another RESP, the parent (as that term is defined at paragraph 252(2)(a) of the Income Tax Act (Canada)) of the Beneficiary was the parent of an individual who was a beneficiary under the other RESP, the Beneficiary was under 21 years of age when the Plan was entered into, and the Beneficiary is resident in Canada when the contribution by way of transfer is made and, unless the Plan was entered into before 1999, the Beneficiary's social insurance number is provided to the Promoter before the contribution by way of transfer is made.

Notwithstanding the foregoing:

- (d) no contribution shall be less than the minimum contribution amount, if any, established by the Promoter from time to time,
- (e) no contribution may be made to the Plan by or on behalf of the Subscriber after the Final Contribution Date, and

- (f) a contribution by way of transfer from another RESP will not be permitted if the other RESP has made an accumulated income payment.

The Subscriber is solely responsible for ensuring that the total amount of contributions made in respect of the Beneficiary under the Plan and any other RESPs does not exceed the RESP Lifetime Limit.

6. GOVERNMENT GRANTS

Where the Beneficiary is eligible for Government Grants under the Applicable Grant Legislation, at the request of the Subscriber and upon completion and delivery of all forms required under the Applicable Grant Legislation and by the Promoter, the Promoter will apply for Government Grants in respect of the Beneficiary. The Promoter and the Trustee are not responsible for determining whether the Beneficiary is eligible for Government Grants.

The Promoter will cause the Trustee to pay out of the Assets of the Plan any refund of Government Grants required under the Applicable Grant Legislation and Applicable Tax Legislation.

7. INVESTING

The Assets of the Plan will be invested in accordance with the Subscriber's instructions, in a form satisfactory to the Promoter, provided that any proposed investment complies with the Promoter's investment requirements, if any, communicated to the Subscriber from time to time. The Promoter may, in its sole discretion, retain a portion of the Assets of the Plan in cash for the administration of the Plan. If the Plan has a cash deficit, as determined by the Promoter in its sole discretion, the Promoter may cause the realization of investments in the Plan, at the Promoter's choosing, to cover such cash deficit including for the purposes of paying expenses, taxes, fees and other amounts including for greater certainty, fees and other amounts payable under section 13.

Any uninvested cash will be placed on deposit with the Trustee or an affiliate of the Trustee. The interest payable to the Plan in respect of such cash balances will be determined by the Promoter from time to time in its sole discretion with no obligation to pay a minimum amount or rate. The Trustee will pay interest to the Promoter for inclusion in the Plan and the Promoter shall credit the Assets of the Plan with appropriate interest.

The Trustee shall have no responsibility to ensure the interest is included in the Assets of the Plan by the Promoter and will not be liable if such inclusion is not made.

Any segregated fund investments will be held in nominee name. The Promoter and Subscriber shall designate the Trustee as the beneficiary under any segregated fund held under the Plan. Upon the death of the Subscriber, the proceeds of the segregated fund shall be paid to the Plan and form part of the Assets of the Plan to be dealt with according to the terms of this Plan Text.

It is the sole responsibility of the Subscriber to select investments of the Plan and to determine whether any investment should be purchased, sold or retained by the Plan. In the absence of any instructions from the Subscriber, the Promoter may, in its sole discretion, cause the realization of sufficient investments to permit the payment of any amounts required to be paid under the Plan.

The investment of the assets of the Plan shall not be limited in any way to investments authorized for trustees under, or to the criteria in planning or the requirements for diversifying the investment of the assets of the Plan as may be prescribed for trustees by, any applicable federal, provincial or territorial legislation. It is the sole responsibility of the Subscriber to ensure that investments of the Plan are and remain Qualified Investments and that any such investment is not and continues not to be a Prohibited Investment. After March 22, 2017, the Promoter shall exercise the care, diligence and skill of a reasonably prudent person to minimize the possibility that the Plan holds a non-Qualified Investment.

8. CORPORATE ACTIONS

The Promoter and the Trustee will not have any duty or responsibility to vote, subscribe, convert or tender the Assets of the Plan in respect of any merger, consolidation, reorganization, receivership, bankruptcy, insolvency proceedings, take-over bids, issuer bids, rights offerings or similar events with respect to the investments of the Plan, except in accordance with a direction from the Subscriber.

9. REFUND OF PAYMENTS

At any time, the Subscriber may, in a written form satisfactory to the Promoter, request a Refund of Payments, such amount not to exceed the value of the Assets of the Plan less the total amount of all Government Grants held in the Plan.

Within 30 days of receipt of the written request by the Promoter (or such shorter period as the Promoter may determine in its sole discretion), the Refund of Payments will be paid to the Subscriber or to the Beneficiary if so directed by the Subscriber in writing.

Where there is more than one Subscriber at the time a Refund of Payments is requested, the Refund of Payments is deemed to be owed to both Subscribers jointly and may be paid either to both Subscribers or to either one of them, as directed by the Subscribers. Absent such direction, the Refund of Payments will be paid to both Subscribers jointly. Any Refund of Payments made to one or both Subscribers, as the case may be, shall constitute a valid discharge to the Promoter and Trustee for the Refund of Payments paid.

10. EDUCATIONAL ASSISTANCE AND OTHER PAYMENTS

Upon receipt of instructions from the Subscriber in a form satisfactory to the Promoter, the Promoter shall cause the Trustee to pay out of the Assets of the Plan, including any Government Grants held in the Plan subject to the provisions of the Applicable Grant Legislation, such amount or amounts as the Subscriber directs:

- (a) to or for the Beneficiary as an Educational Assistance Payment
 - (i) provided either that the Beneficiary
 - A. is enrolled at a Post-Secondary Educational Institution as a student in a Qualifying Educational Program, or
 - B. has attained the age of 16 years and is enrolled as a student in a Specified Educational Program at a Post-Secondary School; and
 - (ii) further provided either that the Beneficiary
 - A. has satisfied the condition set out in section 10(a)(i)A., and
 - a) has done so throughout at least 13 consecutive weeks in the 12-month period that ends at that time, or
 - b) the total of the Educational Assistance Payment and all other education assistance payments made under this Plan and any other RESP of the Promoter to or for the Beneficiary in the 12-month period that ends at that time does not exceed \$5,000 before March 28, 2023 and \$8,000 after March 27, 2023 or any greater amount that the Minister designated for the purposes of the Canada Education Savings Act approves in writing with respect to the Beneficiary; or
 - B. satisfies the condition set out in subparagraph 10(a)(i)B. and the total of the payment and all other Educational Assistance Payments made under a RESP of the Promoter to or for the Beneficiary in the 13-week period that ends at that time does not exceed \$2,500 before March 28, 2023 and \$4,000 after March 27, 2023 or any greater amount that the Minister designated for the purpose of the Canada Education Savings Act approves in writing with respect to the Beneficiary.

Notwithstanding the above, an Educational Assistance Payment may be paid at any time in the six-month period immediately following the time at which the Beneficiary ceases to be enrolled as a student in the Qualifying Educational Program or the Specified Educational Program if the Educational Assistance Payment would have complied with the above requirements had it been made immediately before that time. The Trustee will cause all or a portion of each Educational Assistance Payment to be paid from any Government Grants held in the Plan as permitted by and pursuant to the terms of the Applicable Grant Legislation.

The Promoter will determine whether the conditions for paying an Educational Assistance Payment have been satisfied and such determination shall be final and binding on the Subscriber and Beneficiary;

- (b) to, or to a trust in favour of, a Designated Educational Institution in Canada;
- (c) to another RESP so long as no Accumulated Income Payment has been paid under section 10(d); or
- (d) as an Accumulated Income Payment provided that:
 - (i) the payment is made to, or on behalf of, a Subscriber who is resident in Canada for tax purposes when the payment is made,
 - (ii) the payment is not made jointly to, or on behalf of, more than one Subscriber, and
 - (iii) any of
 - A. the payment is made after the 9th year that follows the Plan Commencement Year and each individual (other than a deceased individual) who is or was a Beneficiary has attained 21 years of age before the payment is made and is not, when the payment is made, eligible under the Plan to receive an Educational Assistance Payment,
 - B. the payment is made in the 35th year following the Plan Commencement Year where the Plan is not a Specified Plan,
 - C. the payment is made in the 40th year following the Plan Commencement Year where the Plan is a Specified Plan, or
 - D. each individual who was a Beneficiary is deceased when the payment is made.

At the Subscriber's request and on receipt of the requisite supporting documentation, where the Beneficiary suffers from a severe and prolonged mental impairment that prevents, or can reasonably be expected to prevent, the Beneficiary from enrolling in a Qualifying Educational Program at a Post-Secondary Educational Institution, the Promoter will apply to the Minister of National Revenue for permission to waive the condition in section 10(d)(iii)(A) for making Accumulated Income Payments. Where there is more than one Subscriber at the time an Accumulated Income Payment is requested, the payment shall be made to the Subscriber who requested it. Any such payment made to either one of the Subscribers, as requested, shall constitute a valid discharge to the Promoter and Trustee for the payment made.

11. TERMINATION

The Plan will be terminated on the earliest of the following dates:

- (a) the date indicated by the Subscriber in the Application or such other date designated by the Subscriber by written instrument satisfactory to the Promoter. (If more than one such instrument has been delivered to the Promoter, the one bearing the latest date will govern.),
- (b) the last day of February in the year following the year in which the first Accumulated Income Payment is made from the Plan,
- (c) the date the registration of the Plan as a RESP is revoked by the Minister of National Revenue, and
- (d) the Final Termination Date.

Where any Assets of the Plan remain on or immediately before the termination of the Plan, the Promoter shall cause the Trustee to pay from the Assets of the Plan:

- (e) any fees or charges that remain unpaid,

- (f) a Refund of Payments to the Subscriber in the amount that would be permitted under section 9,
- (g) a repayment of any Government Grants as required under the Applicable Grant Legislation, and
- (h) any amount remaining in the Plan after the payments described in (e), (f) and (g) above, to the Designated Educational Institution in Canada designated by the Subscriber or, where such designation has not been made, chosen by the Promoter.

12. DESIGNATED EDUCATIONAL INSTITUTION IN CANADA

The Subscriber shall designate a Designated Education Institution in Canada in a form satisfactory to the Promoter. At any time, the Subscriber may change the Designated Educational Institution in Canada by delivering to the Promoter written notice of such change in a form satisfactory to, and containing the information required by, the Promoter. If more than one such notice has been delivered to the Promoter, the one bearing the latest date will govern.

13. FEES AND CHARGES

Subject to any limitations in the Applicable Grant Legislation, the Promoter and the Trustee shall be entitled to such reasonable fees and charges as may be established from time to time for their services under the Plan and to reimbursement for all costs and disbursements (including all taxes) reasonably incurred in the performance of their duties hereunder including brokerage fees, commissions and other expenses incurred in the making of any investment. The Promoter and the Trustee are entitled to change the amount of such fees or charges in the future, upon reasonable notice to the Subscriber. Unless paid directly to the Promoter and Trustee, all amounts payable pursuant to this section (together with any applicable taxes) shall be charged against, and deducted from, the Assets of the Plan (excluding any Government Grants) in such manner as the Promoter and the Trustee determine and the Promoter may, in its sole discretion, cause the realization of investments held in the Plan, at the Promoter's choosing, for the purpose of paying such fees and other amounts.

The Subscriber authorizes both the Promoter and the Trustee, together or separately, to appoint and employ agents to who both may delegate, respectively any of the Promoter's and the Trustee's powers, duties and responsibilities under the Plan.

14. APPOINTMENT AND RESPONSIBILITIES OF TRUSTEE

The Trustee agrees to act as trustee of the Assets of the Plan and shall, subject to the payment of fees and charges pursuant to section 13, irrevocably hold, invest and reinvest the Assets of the Plan for the following purposes:

- (a) the payment of Educational Assistance Payments,
- (b) the payment of Accumulated Income Payments,
- (c) the Refund of Payments,
- (d) the repayment of amounts (and the payment of amounts related to that repayment) under the *Canada Education Savings Act* (Canada) or under a Designated Provincial Program,
- (e) the payment to, or to a trust in favour of, Designated Educational Institutions in Canada, or
- (f) the payment to a trust that irrevocably holds property pursuant to a registered education savings plan for any of the purposes set out in (a) to (e) above.

The Trustee shall file all information returns and other documents in respect of the Plan as required under the Applicable Tax Legislation and the Applicable Grant Legislation.

15. SELF-DEALING

The Trustee's services are not exclusive and, subject to the limitations otherwise provided in these terms and conditions on the powers of the Trustee, the Trustee may, for any purpose, and is hereby expressly authorized from time to time in its sole discretion to, appoint, employ, invest in, contract or deal with any individual, firm, partnership, association, trust or body corporate, with which it may be directly or indirectly interested or affiliated with, whether on its own account or on the account of another (in a fiduciary capacity or otherwise), and to profit therefrom, without being liable to account therefor and without being in breach of these terms and conditions.

16. REPLACING THE TRUSTEE

The Trustee may resign as trustee of the Plan by providing written notice of such resignation within the notice period agreed upon by the Promoter and the Trustee in writing. The Trustee will resign upon receiving 90 days' written notice from the Promoter so long as it is satisfied that the proposed replacement Trustee will properly assume and fulfill the Trustee's duties and liabilities hereunder.

Upon receiving notice of resignation from the Trustee, or upon providing notice to the Trustee to resign, the Promoter shall forthwith select a replacement Trustee. If the Promoter fails to nominate a replacement Trustee within 30 days after receipt of the notice of resignation or providing the notice to the Trustee to resign, the Trustee shall be entitled to appoint a replacement Trustee. The resignation of the Trustee will not be effective until the replacement Trustee has been appointed and until notice of the replacement has been provided by the Promoter to the Minister of Employment and Social Development and any other governmental authority which may require such notice.

Upon the appointment of a replacement Trustee, the replacement Trustee shall, without further act or formality, be and become the Trustee hereunder and, without any conveyance or transfer, be vested with the same power, rights, duties and responsibilities as the Trustee and with the Assets of the Plan as if the replacement Trustee had been the original Trustee. The Trustee shall execute and deliver to the replacement Trustee all such conveyances, transfers and further assurances as may be necessary or advisable to give effect to the appointment of the replacement Trustee. Any replacement Trustee must be a corporation resident in Canada that is licensed or otherwise authorized under the laws of Canada or a province to carry on in Canada the business of offering to the public its services as a trustee.

Any trust company resulting from the merger or amalgamation of the Trustee with one or more trust companies and any trust company that succeeds to substantially all of the trust business of the Trustee will become the replacement Trustee without further act or formality, subject to prior notice being provided to the Minister of Employment and Social Development and any other governmental authority which may require such prior notice.

The Promoter shall give notice of the replacement of the Trustee to the Subscriber, the Minister of National Revenue, and any other governmental authority which may require such notice.

17. RESPONSIBILITIES OF THE PROMOTER

The Promoter has ultimate responsibility for the Plan, including the administration of the Plan in accordance with these terms and conditions. The Promoter will apply for the registration of the Plan as a RESP in accordance with the Applicable Tax Legislation.

The Promoter shall file all information returns and other documents in respect of the Plan as required under the Applicable Tax Legislation and the Applicable Grant Legislation.

18. STATEMENTS AND RECORDS

The Promoter will maintain an account for the Plan in which will be recorded:

- (a) contributions to the Plan by or on behalf of the Subscriber,
- (b) investments, investment transactions and investment income, gains and losses,
- (c) Educational Assistance Payments,
- (d) amounts transferred to another RESP,
- (e) Government Grants repayments,
- (f) amounts paid to Designated Educational Institutions in Canada,
- (g) the Refund of Payments available to be made to the Subscriber and the Refunds of Payments already made,
- (h) the amount of fees and other charges payable by the Plan,
- (i) Accumulated Income Payments, and
- (j) the balance of any Government Grants held in the Plan and any other information required under an agreement between the Promoter and the Employment and Social Development Canada or any other governmental authority respecting Government Grants. An annual (or more frequent at the sole discretion of the Promoter) statement

19. REPLACING THE PROMOTER

Provided the written consent of the Trustee has been obtained, such consent not to be unreasonably withheld, at any time, the Promoter may assign its rights and obligations under the Plan to any other corporation resident in Canada that is authorized to assume and discharge the obligations of the Promoter under the Plan so long as prior notice has been provided by the Promoter to the Minister of Employment and Social Development and any other governmental authority which may require such prior notice. Any such assignee shall execute any agreements and other documents that are necessary for the purpose of assuming such rights and obligations.

The successor Promoter shall give notice of the replacement of the Promoter to the Subscriber, the Minister of National Revenue, and any other governmental authority which may require such notice.

20. LIMITATION OF LIABILITY OF TRUSTEE AND PROMOTER

Other than those taxes for which the Promoter is liable and that cannot be charged against or deducted from the Assets of the Plan in accordance with Applicable Tax Legislation:

- (a) the Promoter and the Trustee shall not be liable for any loss or damage suffered or incurred by the Plan, a Subscriber or the Beneficiary as a result of the purchase, sale or retention of any investment including any loss resulting from the Promoter or the Trustee acting on the direction of an agent appointed by a Subscriber to provide investment direction.
- (b) the Promoter and the Trustee shall not be liable in their personal capacity for any tax, interest or penalty which may be imposed on the Trustee in respect of the Plan under Applicable Tax Legislation, as a result of payment out of the Plan or the purchase, sale or retention of any investment (including any investment that is not a Qualified Investment; "qualified investment" within the meaning of the Applicable Tax Legislation).
- (c) the Subscriber will at all times indemnify the Promoter and the Trustee and save the Promoter and the Trustee harmless in respect of any Government Grant repayments required to be made or taxes which may be imposed on the Promoter or the Trustee as a result of the acquisition, retention or transfer of any investments or as a result of payments or distributions out of the Plan made in accordance with these terms and conditions or as a result of the Promoter or the Trustee acting or declining to act upon any instructions given to the Promoter or the Trustee, whether by the Subscriber or any agent appointed by the Subscriber to provide investment direction.

21. AMENDMENTS TO THE PLAN

The Trustee or Promoter may change the terms of this Plan Text periodically. The Subscriber will be provided with notice of any such changes. No change to these terms and conditions shall have the effect of disqualifying the Plan as a RESP or disqualifying the Beneficiary as a recipient of Government Grants under the Applicable Grant Legislation and any change may be retroactive.

22. NOTICE

Any notice given by the Subscriber to the Promoter or Trustee shall be sufficiently given if delivered to the office of the Promoter where the Plan is administered or, if mailed, postage prepaid, addressed to the Promoter at such office and shall be deemed to have been given on the date such notice is delivered or received by the Promoter.

Any notice, statement or receipt to be given by the Promoter to the Subscriber shall be sufficiently given if delivered personally to the Subscriber or, if mailed, postage prepaid, addressed to the Subscriber at the address set out in the Application unless the Subscriber or, where applicable, the Subscriber's Estate Representative or personal representative has notified the Promoter of a new address. Any such notice, statement or receipt shall be deemed to have been given at the time of personal delivery to the Subscriber or, if mailed, on the third day after mailing.

23. SUBSCRIBER INSTRUCTIONS

All directions, instructions, designations and other information to be provided under the Plan by the Subscriber must be in a form acceptable to the Promoter and the Trustee.

24. PRIVACY

The Subscriber agrees that any information provided by the Subscriber to the Promoter may be used by and shared between the Trustee, the Government of Canada and the applicable province or territory as required for the administration of the Plan in accordance with these terms and conditions, Applicable Grant Legislation, Applicable Tax Legislation and otherwise in accordance with applicable laws.

25. DATE OF BIRTH AND RESIDENCY

The Subscriber's statement of the Beneficiary's date of birth on the Application or a written designation shall be deemed to be a certification of the Beneficiary's age and an undertaking by the Subscriber to provide any further evidence of proof of age as may be required by the Promoter.

The Trustee and Promoter shall be entitled to rely upon the Promoter's records as to the current address of the Beneficiary and the Subscriber as establishing his or her respective residency and domicile for the operation of the Plan and any payments from it, subject to the receipt of any written notice to the contrary respecting a change in residency or domicile prior to such payment being made.

26. SUBSCRIBER DEATH

The Promoter and the Trustee are each authorized as each determines advisable in its sole discretion to release any information about the Plan after the Subscriber's death to either the Subscriber's Estate Representative or the Beneficiary, or both. If the Beneficiary is a minor at the time of his or her death, such information may be released to his or her custodial parent, legal guardian or Public Primary Caregiver.

Where a Subscriber dies at a time when there are two Subscribers:

- (a) if the Plan was opened outside of the Province of Quebec, the survivor shall assume all rights, privileges and obligations of the deceased Subscriber and the heirs, successors, assigns and legal representatives of the deceased Subscriber shall have no rights under the Plan; or
- (b) if the Plan was opened in the Province of Quebec, the *Civil Code of Quebec* and other applicable laws will apply.

27. PAYMENT INTO COURT

If there is a dispute about who is legally authorized to direct and receive payments from the Plan after the death of the Subscriber, the Promoter and the Trustee are entitled to either apply to the court for directions or to pay all or a portion of the Assets of the Plan into court and, in either case, fully recover any legal costs incurred in this regard as a cost or disbursement in respect of the Plan. The Promoter and the Trustee will not be liable for any penalty, or any loss or damage resulting from the repayment of Government Grants as required under the Applicable Grant Legislation, that may occur as a result of any such payment of Assets of the Plan into court.

28. HEIRS, REPRESENTATIVES AND ASSIGNS

These terms and conditions shall be binding upon the heirs, Estate Representatives, attorneys, committees, guardians of property, other legal and personal representatives and assigns of the Subscriber and upon the respective successors and assigns of the Trustee and the Promoter and their directors, officers, employees and agents, as well as their respective estates, Estate Representatives, heirs, attorneys, committees, guardians of property, other legal and personal representatives and assigns.

29. Language/ Langue (Quebec residents only – Résidents du Québec seulement).

The Subscriber acknowledges that he/she was offered the choice to enter into this agreement in English or French and has expressly requested to enter into such agreement exclusively in English, after receiving a French version. The Subscriber expressly agrees that such agreement and all related documents, including notices, will be exclusively in English. Le titulaire reconnaît qu'on lui a offert le choix de conclure cette convention en français ou en anglais et qu'il a expressément demandé à ce qu'elle soit exclusivement en anglais, après avoir reçu la version française. Par conséquent, il consent expressément à ce que cette convention et tous les documents qui s'y rattachent, y compris les avis, soient exclusivement rédigés en anglais.

30. GOVERNING LAW

The Plan shall be governed by and construed in accordance with the laws of the Province of Ontario and the laws of Canada applicable therein.

The Subscriber expressly agrees that any action arising out of or relating to the Plan shall be filed only in a court located in Canada and the Subscriber irrevocably consents and submits to the jurisdiction of such court for the purposes of litigating any such action.

(4/10/2012)